

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

Present: Sh. Lokender Singh Raghav, Special Public Prosecutor for the complainant-SFIO alongwith Sh. Abihnav Deshwal, Advocate and Ms. Anoushka Bhalla, Advocate for SFIO.

None for accused Nos. 1 to 70 companies

None for accused Nos. 71 to 78 companies

Accused No.79 company, represented through accused No.115 Vivek Hari Vyasi who is on interim bail.

Accused Nos. 80 company, represented through accused Naveen Kumar (No. 139).

Accused Nos. 81 and 82 companies, represented through accused Surender Singh (No. 140) who is on bail

None for Accused No.83 company

Sh. Somender, AR on behalf of accused No. 84 & 85 company

Accused Nos. 86, 87 and 88 companies, represented through accused Ravi Tak (No. 166)

None for Accused No. 89 company

Accused Nos. 90 to 93 companies, represented through accused No.115 Vivek Hari Vyasi who is on bail

Accused Nos. 94 to 97 companies, represented through Shri Rahul, AR, in person

Accused No. 98 company, represented through Shri Naresh Kumar, AR, in person

Accused Nos. 99 and 100 companies, represented through accused Raj Kumar Modi (No. 176) who is on interim bail

None for Accused No. 101 company

Accused No. 102 company, represented through Shri Deepak, AR, in person

AR for accused No.103 company through Sh. Radhey AR in person

Accused No. 104 company, represented through Shri Vicky, AR , in person

Accused No. 105 company represented through Shri Anoop, AR , in person

Accused No. 106 company represented through Shri KashiNath Jha, AR, in person

None for accused No. 107

Accused No. 108 to 112 companies, represented through ARs, in person

Accused No. 113/Mukesh Modi not produced.

Accused No.114 Rahul Virendra Modi not produced.

Accused No.115 Vivek Harivyasi on bail (sought exemption)

Accused No.116 Nitin in person.

Accused No.117 Priyanka Modi on bail in person, represented by Sh Manl Mittra, Advocate

Accused No.118 Jitender in person.

Accused Vinay Kumpawat (No. 119) already declared proclaimed person vod 27.07.2022

Accused No. 120/Vibhav Lodha is on bail

Accused No. 121 Paras Bolia not present.

Proceedings qua accused No.122 Virender Modi stood abated vide order dated 13.11.2024

Accused No. 123/Rohit Modi not present.(Exemption sought)

Accused No.124 Neha Ghelawat not present.(Exemption sought)

Accused No. 125/Rajeshwar Singh, who is on bail in this case but in custody in other case, not produced before the Court by concerned jail authority at Jodhpur ‘

Accused No.126/Bharat Modi, who is on bail in this case but in custody in other case, (not produced before the Court by concerned jail authority)

Accused 127 Abhay K Shah not present represented by Sh. Somender Singh, Advocate through Counsel (Review pending in HSC)

Accused 128 Manish Chaudhary absent.

Accused 129 Deepak Shrimali not present represented by Sh. Somender Singh, Advocate through Counsel (Review pending in HSC)

Accused Jainam Rathod (No.130) not present (Exemption Sought)

Accused No. 131/Ishwar Singh Sindal, who is on bail in this case but in custody in other case (not produced before the Court)

Accused No.132 Meenakshi Modi not present (Exemption Sought)

Accused No.133 Parkash Chandra Purohit Modi not present.

Accused No.134/Vivek Purohit, who is on bail in this case but in custody in other case (not produced before the Court)

Accused No. 135/ Siddharth Chauhan not present represented by Sh. Deepak Verma, Advocate and Sh. Pankaj Mishra, Advocate.

Accused Akshat Singh (No. 136) on bail in person, represented by Shri Amol Gupta, Advocate

Accused Shinder Pal Singh (No. 137) already declared proclaimed person vod 03.05.2024

Accused no. 138 Gurbit singh in person represented by his counsel

Accused Naveen Kumar (No.139) not present (Exemption sought), represented by Sh Ishaan Mukherjee and Sh Vinayak Gupta, Advocates

Accused Surender Singh (No. 140) on interim bail, in person

Accused Aditya Sarda (No. 141) not present (Exemption sought)

Accused No. 142/Bharat Das Vaishnav not present (Exemption sought)
Accused No.143/Sudhir Punia is on bail in person

Accused Joydeep Das Gupta (No.144) and Lovekush Sharma (No.145), on bail, but granted permanent exemption(s) till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Leena Harivyasi (No. 146) on bail, exempted till further orders vide order dated 03.05.2024 represented through counsel

Accused Vimal Sanwarmal Sharma(No.147), on bail, in person.

Accused Avanish Kumar Tyagi (No.148) on bail, but granted personal exemption till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Vijay Shukla (No. 149) in person, on interim bail, in person

Accused 150 Ajit not present.

Accused Poonam Madan(No. 151) on bail, but granted personal exemption till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused 152 Nazima Khan and 153 Sabbir Khan not present represented by their Advocates through Counsel (Review pending in HSC Exemption sought)

Accused Bharat Kumar Mardia (No. 154) represented by his counsel

Proceedings qua accused Mahendra Kumar Tak (155) stood abated vide order dated 25.03.2022.

Accused Praveen Maheshwari (No.156) and Rajeev Maheshwari (No.157) on bail, but exempted from permanent appearance till further order(s) vide order 31.01.2020, represented through Shri Piyush Jain, Advocate.

Accused 158 Ram Lal and 159 Hemant not present.

Accused No.160 Shiv Raj Sharma (sought exemption) (Aprover)

Accused No.161 and 162, 165, 172 not present.

Accused Megha Chauhan No.(No. 163 **sought exemption today**) accused Indu Tak (No. 164 **sought exemption today**), accused Ravi Tak (No. 166 **sought exemption today**) on bail, represented by Sh Neeraj Dev Gaur, Advocate.

Accused Rajeev Verma (No.167), Sushil Maloo (No.168) and Rajendra Singh Bhandari (No.169) on bail, but granted permanent exemption vide order(s) dated 04.09.2019.

Accused Sudhir Mehta(No170) **on bail**, (sought exemption today) represented by Sh Neeraj Dev Gaur, Advocate.

Accused No.171 Raj Kumar Bohra **in person today**, however, **permanently exempted** till further orders.

Accused No.173 Peeyush Aggarwal not present (Exemption sought) represented by Sh Prashant Yadav, Advocate

Accused Paramvir Singh Sangwan(No.174) on bail, but granted permanent exemption till further order vide order dated 19.02.2021, represented by Shri Dinesh Kumar, Advocate.

Proceedings qua accused Vijay Jindal (175) stood abated vide order dated 25.03.2022.

Accused Raj Kumar Modi (No. 176), on interim bail, in person.

Accused No.177/Rajiv Kumar Rana **in custody**, not produced by the concerned jail authority

Accused Mahesh Dutt Sharma(No.178), **on bail**, (sought exemption today) represented through counsel

Accused 179 Damyanti Bhandari not present.

Accused Ichchhita Dungarwal (No.180) and Neha Kataria (No.181) permanently exempted till further orders vod 22.11.2019, represented by Sh Nitin Desodya, Advocate (in person)

Accused 182, 183,184, 185, 186 not present.

Accused Mahesh Kumar Tak (No. 187) on bail, represented by Sh Neeraj Dev Gaur, Advocate. (*sought exemption*)

EXEMPTION APPLICATIONS:

Separate applications seeking exemption from personal appearance(s) are filed on behalf of accused No. 115, 123,124,130,132,138,141,142, 160,163,164,166, 170,173,178,187. After going through the contents of applications of these accused the same stands allowed and the aforesaid accused persons are exempted from personal appearance for today only.

Accused No.113 Mukesh Modi and 114 Rahul Modi 5(i) Accused No.113 Mukesh Modi and accused No.114 Rahul Modi have not been produced by the jail authorities Jodhpur, Rajasthan. Accused no. 125 Rajeshwar, 126 Bharat Modi, 131 Ishwar Singh Singal, 134 Vivek 177 Rajiv Kumar Rana not produced. Production warrant against aboved mentioned accused persons be issued for date fixed.

Qua accused no.135 i.e. Siddharth Chauhan, an application has been moved by SPC Gurugram and Senior Prosecutor SFIO, wherein, while drawing reference to the orders dated 25.03.2022, 04.08.2022 passed by Hon'ble High Court, 22.07.2025, wherein accused was declared Proclaimed Offender and orders passed in the question petition no. CRM-M- 45417/2025, the Hon'ble High Court was pleased to dismiss the petition. Reference has also been drawn to the orders passed by the Hon'ble Supreme Court of India in SLP(Crl)-37/2026, and SLP(Crl)-1621/2026 and MA 297/2026 in SLP(Crl)-36/2026, wherein, accused was granted time to surrender till 20.02.2026 failing which the law enforcement agency was directed to take steps in accordance with law. Learned Senior Prosecutor for SFIO has submitted that in light of the directions of the Hon'ble Supreme Court of India, the accused may be declared proclaimed offender as already declared on 22.07.2025. He has submitted that the warrants dated 04.04.2026 issued by the Court have been received back unexecuted.

Meanwhile, an application on behalf of accused no. 135 has been moved by counsel for placing on record the susequent developments and for seeking cancellation of the NBWs issued against the applicant/accused no. 135, and for furnishing bail bonds with an undertaking that the applicant wishes to deposit the quantum of amount alleged in

the complaint, without prejudice to his rights to contest the trial and is further ready to co-operate in the trial and abide by any other condition(s) that may be imposed by this Hon'ble Court.

A perusal of the application shows that the application has not been signed by the applicant/accused no.135 and the same is dated -.03.2026. When a question was posed to the learned counsel, regarding his capacity in appearing for the accused, he has placed on record the Power of attorney on behalf of the accused today in the Court. The accused is not present in the Court. This fact has been conceded to by the counsel that there is no stay to the proceedings before this Court in the review petition by the Hon'ble Supreme Court.

In the absence of the accused, and in the absence of any stay from the Hon'ble Supreme Court of India, this court has to comply with the orders passed by the Hon'ble Supreme Court in MA 297/2026 in SLP(Crl)-36/2026, wherein following orders were passed by the Hon'ble Supreme Court: *"The Miscellaneous application is disposed of by granting final extension of time to the petitioner to surrender by 20th February, 2026, failing which the law enforcement agency shall take steps in accordance with law. Pending application(s), if any, shall stands disposed of.*

In light of the orders passed by Hon'ble Supreme Court, the orders dated 22.07.2025, declaring him as Proclaimed Offender passed against the accused no.135-Sidharth Chauhan by this Court stands automatically revived and no purpose shall be served by again issuing warrants of arrest against accused no.135-Sidharth Chauhan as he has failed to even abide by the orders passed the Hon'ble Supreme Court in MA 297/2026 in SLP(Crl)-36/2026 on 13.02.2026. Accordingly, the present application moved on behalf of the Senior Prosecutor seeking declaring accused no.135-Sidharth Chauhan as Proclaimed Offender is hereby allowed and the application moved on behalf of accused no.135-Sidharth Chauhan on behalf of his counsel in his absentia is hereby dismissed on merits as well as on account of absence of accused Sidharth Chauhan and **accused no.135-Sidharth Chauhan is hereby declared as Proclaimed Offender.**

At this stage, Learned Senior Prosecutor has submitted that Hon'ble High Court of Punjab & Haryana Chandigarh, vide order dated 22.12.2025 in Crm-31296-2024 and Crm-M-26815-2025 has been pleased to direct this Court to segregate and separate the trial of the accused appearing before this Court. In compliance of the said order, the Learned Senior Prosecutor for SFIO is directed to submit a separate list depicting the persons who have put in appearance and the list depicting the persons who have not put in appearance till date by the next date of hearing so that compliance of order of Hon'ble High Court can be duly made.

ACCUSED PERSONS NOT PRESENT TODAY:

Accused no. 133,158,159,161,162,165,179,182,183,184 and 185 not present today. They be now summoned through Bailable warrant in the sum of Rs.10,000/- with one surety in the like amount for date fixed i.e. **04.06.2026**.

(Puneet Sehgal)
ASJ, Gurugram
UID No. HR-0183

Date of order: 17.04.2026